

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK-----X
Dylan Armstrong,: Index Number:
Date Purchased:
: Date Filed:

Plaintiff

: SUMMONS

-against-

:

City of New York, New York City Police Department and
New York City Police Officer John Coyne, Shield
10349 of the Midtown North Precinct,

:

Plaintiff's residence is:
: 65 Bank Street
Apartment 20
New York, NY 10014

Defendants

-----X

TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to Answer the Verified Complaint in this action and serve a copy of your answer, or if the Verified Complaint is not served with this Summons to serve a notice of Appearance on the Plaintiffs attorney within twenty (20) days after the service of this Summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this Summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Verified Complaint.

The basis of venue designated is that the incident occurred in New York County.

Dated: September 13, 2013,
New York, NY

Yours, etc.,

LAW OFFICES OF JASON A. STEINBERGER, LLC
Attorney for Plaintiff
910 Grand Concourse, Suite 1C
Bronx, NY 10451
(646) 256-1007

To: City of New York

New York City Police Department

New York City Police Officer John Coyne

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
Dylan Armstrong, :

Plaintiff, :

: VERIFIED COMPLAINT
-against- :

City of New York, New York City Police Department and
New York City Police Officer John Coyne, Shield
10349 of the Midtown North Precinct, :

Defendants.
-----X

Plaintiff, by and through his attorney, JASON A. STEINBERGER, Esq, for his complaint,
alleges upon information and belief as follows:

STATEMENT OF FACTS

1. That at all times hereinafter mentioned, Plaintiff Dylan Armstrong, (hereinafter referred to as “ARMSTRONG”) resides in New York County, State of New York.
2. That at all times hereinafter mentioned, New York City Police Officer John Coyne, shield 10349 of the Midtown North Precinct, (hereinafter referred to as “COYNE”) was employed by the New York City Police Department.
3. That at all times hereinafter mentioned, Defendant City of New York, is a municipal corporation organized and existing under the laws of the State of New York, with a principal place of business located at 1 Centre Street, County of New York State of New York.
4. That at all times hereinafter mentioned, Defendant New York City Police Department, is an agency created and maintained by the above municipal government.

5. On or before about June 10, 2013 notice required by Municipal Law 50-E was given to City of New York, by personal service. Said notice set forth the facts underlying Plaintiffs' claim against the City of New York, and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York.

6. On or about August 16, 2013 a hearing required by Municipal Law 50-H was conducted. At said hearing, Plaintiffs testified and set forth the facts underlying Plaintiffs' claim against the City of New York and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York in response to this claim, and more than thirty (30) days have elapsed.

7. That on May 12, 2013, at approximately 4:20AM Plaintiff was walking out from club Lavo, located at East 58 Street and Madison Avenue when an individual names Khader Badwan approached him and offered him a white powdery substance and that Plaintiff refused.

8. That COYNE approached Plaintiff and Khader Badwan, handcuffed them and arrested them.

9. That at no time before COYNE arrested Plaintiff was Plaintiff engaged in any illegal activity.

10. That at no time before COYNE arrested Plaintiff was he in possession of any controlled substances.

11. That after Plaintiff was arrested, he was transported to the Midtown North Police Precinct.

12. That Plaintiff was held inside of a cell at the Midtown North police precinct for several hours where he was denied access to water and bathrooms.

13. That after being held for several hours, Plaintiff was then removed to the New York County booking located at 100 Centre Street, New York, New York.

14. That while at New York County Central Booking, Plaintiff was held in a cell with other males for several hours.

15. That while at New York County Central Booking, Plaintiff was held in a cell with no access to water or a working bathroom.

16. That on or about May 13 at approximately 1:00AM, Plaintiff was arraigned on docket 2013NY037742 where he was charged with Criminal Possession of a Controlled Substance, Penal Law section 220.03, a class A misdemeanor.

17. At Plaintiff's arraignment, he was released on his own recognizance and ordered to return to court.

18. That when Plaintiff returned to court on June 13, 2013 the case against Plaintiff was dismissed upon application of the New York County District Attorney.

**AS AND FOR A FIRST CAUSE OF ACTION AGAINST THE CITY OF NEW YORK
AND NEW YORK CITY POLICE DEPARTMENT**

19. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 18, as if more fully stated herein at length.

20. That Defendants and COYNE acted with actual malice toward Plaintiff and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of the Plaintiff.

21. That the actions of the Defendants and COYNE constituted unreasonable deprivation of liberty without due process of law.

22. That as a result of the actions by Defendants and COYNE, Plaintiff was traumatized and fears for his physical safety when he sees and encounters members of the New York City Police Department from that day and onward.

23. That as a result of the Defendants and COYNE's actions, Plaintiff has been unable to sleep.

24. That as a result of the Defendants and COYNE's actions, Plaintiff was forced to miss multiple days of work.

25. That as a result of the Defendants and COYNE's actions, Plaintiff hired an attorney to represent him and spent \$4,500 for said legal services.

26. That as a result of the Defendants and COYNE's actions Plaintiff sustained damage to his person in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

AS AND FOR A SECOND CAUSE OF ACTION AGAINST CITY OF NEW YORK AND
NEW YORK CITY POLICE DEPARTMENT

27. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 26, as if more fully stated herein at length.

28. The intentional verbal abuse, false arrest and false imprisonment by Defendants and COYNE violated the rights of Plaintiff as guaranteed by the Fourth, Fifth and Eighth Amendments to the United States Constitution, as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable.

29. Defendants and COYNE having no lawful authority to arrest Plaintiff did, nevertheless, unlawfully arrest Plaintiff with actual malice toward him and with willful and wanton

indifference to and deliberate disregard for his constitutional rights. Thus Plaintiff is entitled to both compensatory and exemplary damages.

AS AND FOR A THIRD CAUSE OF ACTION AS AGAINST THE CITY OF NEW YORK
AND NEW YORK CITY POLICE DEPARTMENT

30. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 29, as if more fully stated herein at length.

31. Defendants and COYNE conspired to violate Plaintiff's statutory civil rights in violation of 42 U.S.C. sec.1983, et al as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable. Thus Plaintiff is entitled to both compensatory and exemplary damages, as well as attorney's fees.

AS AND FOR A FOURTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND
NEW YORK CITY POLICE DEPARTMENT

32. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 31, as if more fully stated herein at length.

33. Plaintiff was verbally abused, falsely arrested and falsely imprisoned by Defendants and COYNE in a manner that was extreme, outrageous and unjustified and caused Plaintiff to suffer physical and severe emotional distress for which the Defendants and COYNE are individually liable. The verbal abuse, false arrest and false imprisonment on and of Plaintiff by Defendants were unjustified and done with actual malice and wanton indifference to and deliberate disregard for human life and the rights of Plaintiff. Plaintiff is thus entitled to compensatory and exemplary damages.

AS AND FOR A FIFTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND
NEW YORK CITY POLICE DEPARTMENT

34. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 33, as if more fully stated herein at length.

35. At all times pertinent hereto, COYNE was acting within the scope of his employment as an officer of the New York City Police Department and City of New York.

36. The City of New York and New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that COYNE committed within the scope of his employment.

AS AND FOR A SIXTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND
NEW YORK CITY POLICE DEPARTMENT

37. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 36, as if more fully stated herein at length.

38. The City of New York and New York City Police Department's failure to provide adequate training and supervision to its police officers constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff. Plaintiff is thus entitled to compensatory exemplary damages.

AS AND FOR A SEVENTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK
AND NEW YORK CITY POLICE DEPARTMENT

39. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 38, as if more fully stated herein at length.

40. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted and tolerated the unreasonable detention of Plaintiff.

41. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted the wanton indifference to and deliberate disregard for the statutory and constitutional rights of Plaintiff.

WHEREFORE, Plaintiffs each demand judgment against the Defendants as follows:

On the first cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts;

On the second cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts, together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the third cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the fourth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the Defendants' wanton and willful actions;

On the fifth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts

On the sixth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts.

On the seventh cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts.

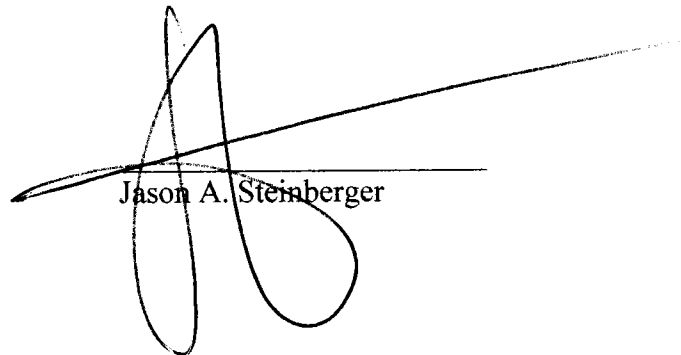
Law Offices of Jason A. Steinberger, LLC

Jason A. Steinberger, Esq.
Attorney for Plaintiffs
910 Grand Concourse
Suite 1C
Bronx, NY 10451
(646) 256-1007

STATE OF NEW YORK: COUNTY OF BRONX

The undersigned, an attorney admitted to practice in the State of New York, under penalties of perjury, affirms the following to be true: Affirmant has read the foregoing Complaint and the contents thereof; the same is true to affirmant's own knowledge, except as to matters therein stated to be alleged on information and belief and as to those matters affirmant believes it to be true; and the reason this verification is made by affirmant and not by the plaintiff is because the plaintiff is not within the county in which your affirmant maintains his principal office. The grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge are communications with the plaintiff, review of records and documents within affirmant's possession.

Affirmed: September 13, 2013



Jason A. Steinberger

Index Number:
SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

DYLAN ARMSTRONG

Plaintiff

-against-

**CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT POLICE AND
NEW YORK CITY POLICE OFFICER JOHN COYNE, SHIELD 10349, OF THE
MIDTOWN NORTH PRECINCT**

Defendant.

SUMMONS and COMPLAINT

LAW OFFICES OF JASON A. STEINBERGER, LLC
910 Grand Concourse
Suite 1C
Bronx, NY 10451

To:
Attorney (s) for Defendant(s)

Service of a copy of the within

is hereby admitted.

Dated:

Attorney(s) for

PLEASE TAKE NOTICE

- ☐ that the within is a (certified) true copy of
☐ entered in the office of the clerk of the within named Court on

**NOTICE
OF ENTRY**

- ☐ that an Order of which the within is a true copy will be presented for settlement to the Hon.
☐ once of the Judges of the within named Court,

**NOTICE OF
SETTLEMENT** at
on

200 , at m.

Dated:

JASON A. STEINBERGER, ESQ.
910 Grand Concourse, Suite 1C
Bronx, NY 10451

To:
Attorney(s) for